

**IN RESPECT OF AN APPLICATION FOR
A LAND USE BY-LAW AMENDMENT
BY PALLISER GRID, AS APPLICANT, TO VULCAN COUNTY
FOR A PROPOSED BYLAW AMENDMENT OF CERTAIN LANDS
TO REDESIGNATE THE LAND USE DESIGNATION
FROM RURAL GENERAL TO RURAL INDUSTRIAL
PROPOSED BYLAW NO. 2026-007
LAND DESCRIPTION: E/2 OF 15-15-21W4 AND SECTION 14-15-21 W4
CONTAINING APPROXIMATELY 850 ACRES MORE OR LESS
(the “APPLICATION”)**

**BRIEF OF ARGUMENT
OF RONALD S. GIRVITZ**

**ON BEHALF OF
LITTLE BOW RESORT AI COMMITTEE**

DATED: APRIL 28, 2026

PART I. ISSUES ARISING AND LBR COMMITTEE'S CONCERNS

1. The Little Bow Resort AI Committee (the “**LBR Committee**”) is a group of landowners who own property at the Little Bow Resort located in Vulcan County. The LBR Committee has been authorized by a majority of landowners owning property at the Little Bow Resort to represent their collective interests. It should not be construed or interpreted that any representation or submissions by the LBR Committee supersedes or replaces any representation or submission from any self represented landowner owning property at the Little Bow Resort or elsewhere.
2. We request that this submission be added to the record for the subject Application. We appreciate that this submission is provided well after the first public hearing of this Application. However, we would submit that given the very short notice period provided, that some leniency be afforded to late submissions and allow these to be added to the record.
3. The purpose of this submission is to generally outline aspects which, if not addressed and properly considered by the Vulcan County Council (the “**Council**”) in the upcoming decision whether to accept the Application for a zoning change, could lead to a declaration of invalidity by the Court of King’s Bench of Alberta pursuant to a judicial review application.
4. A judicial review application is outlined in Sections 536 and 537 of the *Municipal Government Act* (the “**Act**”). It is an expensive and time consuming process for all parties and the LBR Committee strongly urges Council to take steps to avoid giving cause to commence this review process.
5. It is submitted that a thorough and comprehensive review of both the procedural and substantive requirements of the subject Application is in the best interests of all parties and will ensure an outcome that is both fair and meets the listed requirements as set out by the Council in its own bylaws and policies.
6. The issues that will be outlined in this submission are some, but likely not all of the requirements that must be incorporated or satisfied by the Application and Council to avoid a finding of invalidity by the Court of King’s Bench pursuant to a judicial review application. They are summarized as follows and will be described in greater detail in the body of this submission:
 - (a) Procedural Fairness – it is the responsibility of Council to ensure that the process is procedurally fair to all participants. Several aspects of this requirement appear to have emerged and are summarized as follows:
 - (i) The requirement to provide adequate notice was not met. Not only must the notice provided to interested or affected parties meet the

minimum statutory requirements, it must be reasonable in the circumstances. It is submitted that while Council may have complied with the barest minimum statutory notice requirements, such notice was not reasonable in the circumstances;

- (ii) The Application was amended which was both a material change to the proposed project and an amendment to the statutory application requirements. As a result, the process should have been or should be restarted with a new amended bylaw, first reading, notice provided to all interested or affected parties and a new public hearing;
 - (iii) The public participation hearing was not fair. The hearing facilities were too small and overcrowded and did not afford the opportunity for participants to meaningfully engage in the hearing;
 - (iv) There must be an absence of bias, both actual bias and a reasonable apprehension of bias. At this stage, there is no suggestion of an actual or pecuniary bias exhibited by any member of Council. However, many comments made by the Applicant and the manner by which notice was provided suggest that there likely exists a reasonable apprehension of bias; and
 - (v) The requirement to give reasons. Given the importance and effect of the Application, Council must give reasons for any decision rendered as part of this Application including the decision to change the zoning of the subject land. Failure to provide reasons for its decision, would constitute a reviewable error and risk a declaration of invalidity by a court.
- (b) Substantive Requirements Not Met - There are a number of substantive requirements set out by Council which are deficient and not satisfied by the Application. They are summarized as follows:
- (i) the purpose set out in the Rural Industrial – R1 zoning description is not satisfied;
 - (ii) the Application does not meet the requirements of a Data Processing Operation;
 - (iii) the requirements of Section 62.1 of the Land Use Bylaw are not satisfied; and
 - (iv) the Industrial Siting Standards set out in Section 13.1 of Schedule 2 – R1 attached to the Land Use Bylaw were not satisfied because: (a) the Application did not include the water intake aspect of the proposed project; and (b) both the water intake aspect of the proposed project

and the remaining aspects of the proposed project are not sufficiently set back from the listed items.

7. For all of the above reasons, the LBR Committee submits that both the Application and the process utilized are flawed and strongly urges the Council to deny the Application or at the least, adjourn the Application to allow the described deficiencies to be addressed before a zoning decision is rendered. Failing to address these described deficiencies will open the decision to a review by the Court of King's Bench and potentially lead to a decision to render the resulting bylaw invalid.

PART II. GENERAL PRINCIPLES

8. It is submitted that there are a few basic principles in any administrative hearing that should always be considered. While these basic principles may appear obvious, it is worth mentioning to ensure that no substantial mistakes are made with respect to the decision making concerning the Application.
9. The first basis principal is the requirement for the decision maker to consider the whole of the record. The Application and all verbal and written submission made as part of the public hearing process are all part of the record and must be considered.
10. In the present case, the record includes, as part of the Application, a request to rezone the subject lands to "enable the development of a Data Processing Operation and supporting infrastructure". The Application does not propose a land use change to an industrial classification for a general or a "to be determined" purpose. Instead, the Application specifically seeks rezoning for a specific purpose.
11. It is therefore submitted that all substantive requirements required to grant the Application must consider the purpose of the Application described above since it was specifically included in the Application. All substantive requirements must be considered whether a Data Processing Operation meets the siting, environmental, nuisance and any general application requirements in order to be approved.
12. Secondly, again while obvious, it must be emphasized that it is solely the responsibility of the Applicant to tender sufficient evidence to meet all substantive zoning requirements of a Data Processing Operation. Any missing or insufficient evidence for any requirement must cause the Application to be denied. It is not the responsibility for any party, other than the Applicant to ensure that all such requirements are satisfied.

13. This submission will review the various zoning requirement to change the zoning of the subject lands to a Rural Industrial – R1 classification and any missing or insufficient evidence is the responsibility of the Applicant, not the intervenors or Council.
14. It is submitted that upon a finding that any required evidence to meet all substantive requirements is missing or insufficient should cause the Application to be denied.
15. Finally, the existence of Vulcan County’s Public Participation Policy, Policy No. 12-1005, should guide the actions of Council to ensure that the goals, responsibilities and public participation guidelines are met. While not statutorily enacted, the Public Participation Policy sets out standards and obligations upon Council.
16. It is submitted that any breach of failure to comply with the obligations set out in this Policy will cause a breach of the requirement of procedural fairness and a substantive breach of the decision make process.

PART III. THE REQUIREMENTS OF PROCEDURAL FAIRNESS

17. In a proceeding of this nature, there is an obligation incumbent upon Council to ensure that the process utilized is procedurally fair. Failing to meet this procedural fairness requirement will be judicially reviewable and cause the applicable decision to be declared invalid. There are many requirements of procedural fairness and this Part shall describe some of these requirements that have appeared to have emerged throughout the conduct of the process.

(A) REQUIREMENT TO PROVIDE ADEQUATE NOTICE

18. The LBR Committee is aware of Section 606 of the Act which outlines the minimum advertising requirements of a public hearing relating to a bylaw.
19. The LBR Committee is also aware of Section 606.1 of the Act which allows a council to “enact a bylaw to provide one or more methods for advertising proposed bylaws”. Section 606.1 specifies that council must be satisfied that the advertising method would

“bring ... to the attention of substantially all residents in the area to which the bylaw... relates”.
20. Finally, the LBR Committee is aware of Vulcan County Bylaw 2023-021 which allows for advertising of bylaws and public hearings by publishing the

notice on its website and may choose other methods such as the County's social media site.

21. As outlined in a number of prior submissions from many affected parties, Council decided to only advertise the notice by posting on its website and to its facebook page. These prior submissions expressed concerns that the methods utilized by Council failed to provide reasonable notice of the Application on a timely basis. Further, it was noted in these submissions that Council specifically denied a motion to extend area for the delivery of notice to include residents of the Little Bow Resort. No other form of notice was provided to the Little Bow Resort residents nor any other person in the affected area to which we are aware.
22. It is respectfully submitted that the method of notice utilized by Council did not bring to the attention of substantially all residents in the areas to which the bylaw relates and is a breach of Section 606.1 of the Act.
23. The effect upon a large group of landowners at the Little Bow Resort should have caused Council or any member of its staff to take a step to reasonably inform such landowners. An email message with the attached Notification Package to the Little Bow Resort manager (who is well known to Council and staff) or a phone call or any other form of communication would have achieved the required notification requirements set out in the Act. The manager could easily have distributed the Notification Package to all landowners or quickly advised such landowners of the existence of such Notification Package. Instead, Council and its staff chose to do nothing to meet the notice obligation as set out in the Act.
24. It would appear that Council was relying upon Bylaw 2023-021 to discharge all of its advertising obligations as set out in the Act. The LBR Committee does not agree that Council can discharge its statutory obligation in such manner and it is submitted that meeting the bare minimum requirements set out in this Bylaw does not constitute reasonable notice in these circumstances.
25. It is submitted that meeting minimum advertising requirements in its bylaw does not automatically mean that reasonable notice has been provided. The importance of the bylaw, the complexity or magnitude of the proposed project, its effect upon property rights, the impact upon the quality of life of the affected property owners and the effect upon the environment would all suggest that more effective and timely advertising methods should have been utilized by Council to bring notice of the Application to the attention to those affected.
26. It is submitted that landowners in the Little Bow Resort did not receive reasonable or adequate notice of the Application for the proposed project which is massive in scale, will have significant effect upon the property rights

of adjacent landowners and result in significant environmental effects upon adjacent lakes and environmentally sensitive areas.

27. For these reasons, it is submitted that the method and timing of the advertising of the Notification Package for the Application was procedurally unfair.

(B) THE APPLICATION WAS AMENDED WHICH MUST RESTART THE APPLICATION PROCESS

28. In a submission provided by Trent Kostick, P.Eng. dated April 7, 2026, he describes a major change of power supply. He indicates that in the Application, that the proposed project would only have backup diesel powered generation. The implication was that the proposed project would tie into the existing electricity power grid to secure the majority of its electrical requirements.
29. Mr. Kostick then notes that the Applicant's Hearing Submission tendered to Council on or about the April 1, 2026 public hearing and disclosed to the public afterwards as part of the hearing minutes, the Applicant changed its major electricity power source from the existing grid to "its own generation capacity". In essence, the Applicant has changed its application from sourcing the majority of its electricity from the existing power grid to electricity production on site.
30. This change of the source of electricity is highly problematic for two major reasons.
31. Firstly, the change is a material change to the Application and was made without notice to any affected landowner or person. The magnitude of the electrical generation facilities is enormous and will be substantially larger and be required to produce more power than any other current electrical generation facility in Alberta at full buildout at 2GW.
32. No person attending the hearing had any form of notice that a major power plant was now proposed by the Applicant. Without adequate or reasonable notice, the process was made procedurally unfair.
33. Secondly, Section 62.1(b)(vi) of the Vulcan County's Land Use Bylaw specifies that as part of a zoning redesignation application, the applicant must specify the location of the facilities and services (such as electricity) to service the subject property.
34. By changing the electricity sources from utilizing existing infrastructure to on site electricity generation, the Applicant has done more than propose a material change to the Application. The Applicant has now amended the

Application by changing the description of the requirements set out in Section 62.1(b)(vi) of the Land Use Bylaw.

35. It is submitted that as a result of the amendment of the Application as outlined above, the entire rezoning application process must now be restarted with a new proposed bylaw, new first reading, new notice to all affected landowners and persons and a new scheduled public hearing to consider the amended Application.
36. It is submitted that amending the Application as described above and proceeding to conduct a public hearing without reasonable notice of the amendment has caused the public hearing and the process to have become procedurally unfair and is a breach of Vulcan County's own requirements to amend its bylaws.

(C) PUBLIC HEARING MUST BE FAIR

37. Many submissions both written and oral were provided by persons attending in person the April 1, 2026 public hearing. Some of these persons provided written submission after the hearing to advise of the difficulty they experienced with meaningfully participating in the hearing.
38. It would appear from these post hearing submissions that Council was not expecting the number of persons who chose to attend the public hearing. As a result, adequate facilities were not made available and some attendees advised that they had left the public hearing venue as a result of their inability to hear and see the proceedings and were denied the opportunity to meaningfully participate.
39. For this reason, the hearing itself was procedurally unfair and should be rescheduled to accommodate a larger number of attendees.

(D) THERE MUST BE ABSENCE OF BIAS

40. It is well settled at law that any decision maker must be free from bias. Failing the bias requirements will render any decision made invalid. There are two kinds of bias that are considered in this context, actual bias and a reasonable apprehension of bias.
41. Actual bias is typically described as the subjective, demonstrated prejudice or pre-judgment of facts by a decision-maker, making them incapable of maintaining an objective, impartial mind. Usually, a pecuniary interest is involved. The LBR Committee is not asserting that any Vulcan County Councilor has demonstrated actual bias.

42. The other aspect of bias is known as a reasonable apprehension of bias and is typically established when a right-minded, informed person would perceive that a decision-maker (judge, arbitrator, or tribunal member) is not impartial. It focuses on the appearance of fairness, not actual bias.
43. In the present context, there are several occurrences which could lead to a reasonably informed person to perceive that a decision maker is not impartial and breach the requirements of a reasonable apprehension of bias. They are:
- (a) in the Vulcan County Meeting Minutes dated March 11, 2026, item CC 2026-03-11-06, a motion to extend the landowner notification to two miles in respect of the Application was defeated by a vote of 2 for and 5 against. Most concerning is the Councilor representing the residents of the Little Bow Resort voted against the motion after having moved to give first reading to the associated bylaw;
 - (b) Vulcan County did not provide reasonable or adequate notice to affected landowners as described in this submission. It is not reasonably explainable why a simple email, text, phone call or simple communication was not provided to the Little Bow Resort property manager to advise of the Application;
 - (c) Vulcan County chose to implement the minimum time permissible under bylaw 2023-021 to advertise and then schedule a public participation hearing. Clearly, the scope, magnitude and complexity of the Application along with the potentially significant effect upon the environment and the potential for a massive scale of nuisance to affected persons demanded a longer period of time by which to allow these affected landowners to understand what has been proposed and to reasonably determine their own positions; and
 - (d) in the Application and subsequent submissions made at the April 1, 2026 public hearing, Mr. Steeves indicated many times that he is a fifth generation farmer with close ties to the community and the surrounding area. He has indicated that he and his family are well known and influential in the area leading to a reasonably informed person to believe that Mr. Steeves may have or does have either personal or business relationships with some or all of the members of the Vulcan County Council.
44. The foregoing suggests that there does exist a sound argument that a reasonable apprehension of bias has been established thereby rendering a decision to approve the Application invalid.

(E) COUNCIL MUST PROVIDE REASONS FOR ITS DECISION

45. One of the requirements for procedural fairness in decision making processes is for Council to fulfill its obligations to provide reasons for its decision, particularly where the decision affects a persons' rights, privileges and interests.
46. The LBR Committee does appreciate that currently, no decision has been rendered with respect to the Application, but it does expect that when a decision is made, that adequate reasons are provided by Council to ensure that it has fully considered the Application, its obligation to ensure that the process was procedurally fair and that all substantive requirements were met.
47. It is submitted that given the substantial effect upon the Applicant and the property owners affected by the Application, it is incumbent upon the Council to provide meaningful and substantial reasons in support of its decision and to explain why it has rejected either the Application or submissions made in opposition to the Application.
48. It is submitted that approving bylaw 2026-007 without detailed and substantial reasons would be procedurally unfair. Conversely, it would be procedurally unfair to deny bylaw 2026-007 without suitable reasons.

PART IV. SUBSTANTIVE COMPLIANCE

49. The Vulcan County Land Use Bylaw 2020-028 (consolidated to Bylaw 2025-027) (the "**Land Use Bylaw**") outlines a number of requirements that must be satisfied as part of the Application.
50. It is incumbent upon the Applicant to provide sufficient evidence to allow Council to determine whether each and every such requirement is satisfied. If any requirement is not met, then it is submitted that the Application should be denied.
51. The Application is contained on pages 23 through to page 62 of the Notification Package.

(A) RURAL INDUSTRIAL - R1 PURPOSE

52. The Land Use Bylaw specified the purpose for Rural Industrial – R1 zoning as follows:

PURPOSE: To allow industrial uses to be located in rural areas provided they do not pose a threat to the environment or create a potential nuisance for residents.

53. It is submitted that the Application must satisfy the “purpose” described above.
54. There are two requirements that must be considered and satisfied: (a) the use does not pose a threat to the environment; and (b) the use does not create a potential nuisance for residents.
55. A review of the Application indicates that there is no evidence contained that the proposed use does not pose a threat to the environment. It is silent in this regard.
56. A significant number of submissions provided by interested persons at the Public Hearing and subsequent written submissions have indicated that the Application does pose a threat to the environment.
57. The second aspect of the “purpose” is that the use does not cause a nuisance to the residents in the area.
58. A “nuisance” is generally defined as:
- an unlawful interference with a person’s use or enjoyment of their land (private) or with public rights (public). It involves unreasonable, substantial, and often continuous interference such as excessive noise, odor, or pollutants that disrupts comfort or safety.**
59. A significant number of submission provided by interested persons at the Public Hearing and subsequent written submissions have indicated that the Application will cause a nuisance in the form of light, noise, smell, pollution, traffic congestion, egress in an emergent situation and other interferences with their use and enjoyment of their property.
60. A review of the Application indicates that there is no evidence contained that the proposed use does not cause a nuisance to residents in the area. Again, it is silent in this regard.
61. For these reasons, it is submitted that the Application is deficient with respect to the requirements to satisfy the purpose of the Rural Industrial – R1 zoning and should be denied.

(B) THE PROPOSED PROJECT IS NOT A DATA PROCESSING OPERATION

62. One of the discretionary uses in the Rural Industrial – R1 description is a “Data Processing Operation” as described in Section 1.2. The Application

specifically indicates that its intention is to construct a Data Processing Operation.

63. A Data Processing Operation is defined in Bylaw 2020-028 (as amended by 2022-021) as follows:

DATA PROCESSING OPERATION means a heavily industrial facility consisting of a building or a group of buildings housing powerful highly specialized computers that are used to verify digital transactions and require 24/7 climate control. This use may include an onsite power plant. Data processing includes data storage, crypto mining, and other similar uses.

64. It is submitted that the Application does not propose to construct a Data Processing Operation. Instead, the Application proposes to construct an AI data centre campus which is materially different than a Data Processing Operation as it is defined.
65. The definition of a Data Processing Operation outlined above, specifies that the use of the facility is to “verify digital transactions”. It is submitted that the drafters of Bylaw 2020-028 (as amended by 2022-021) chose to specifically limit the use of a Data Processing Operation by inserting a specific use or application of the housed computers. The definition is not broad and is specific to its listed use.
66. It is submitted that the use outlined in the Application is materially distinct from the use specified in the definition of a Data Processing Operation for the following reasons:
- (a) an AI data centre campus is constructed to run and operate an AI computing, storage and networking function;
 - (b) a facility used to verify digital transactions requires a separate application system which may include identity verification, fraud detection, risk scoring and compliance tools; and
 - (c) a facility used to verify digital transactions is a specific application of an AI data centre campus and is distinct therefrom. An AI data centre is able to host a facility to verify digital transactions but is not in of itself, a facility used to verify digital transactions.
67. The Application does not indicate that the proposed facility would be used to verify digital transactions. Instead, the Application indicates that the proposed facility would be used for general AI computing purposes.
68. It is conceded that if Bylaw 2020-028 (as amended by 2022-021) were amended to remove the specific use to verify digital transactions and instead specify general AI computing purposes, that the Application would meet that

amended definition of a Data Processing Operation. However, it is submitted that until the definition of a Data Processing Operation is amended, the Application does not meet the definition of such a facility.

(C) REQUIREMENTS OF SECTION 62.1 OF LAND USE BYLAW NOT SATISFIED

69. Section 62.1 of the Land Use Bylaw specifies that:

A request for redesignation from one land use district to another shall be accompanied by the following information:

- (a) a completed application form and fee;
- (b) a narrative describing the:
 - (i) proposed designation and future use(s);
 - (ii) consistency with the Municipal Development Plan and applicable statutory plans;
 - (iii) consistency with the *South Saskatchewan Regional Plan* and any applicable provincial legislation or policies (i.e. *Water Act*, *Wetland Policy*, etc.);
 - (iv) compatibility of the proposal with surrounding uses and zoning;
 - (v) the suitability of the site, including identification of any constraints and/or hazard areas, (i.e. easements, soil conditions, topography, drainage, etc.);
 - (vi) availability of facilities and services (sewage disposal, domestic water, gas, electricity, fire and police protection, schools, etc.) to serve the subject property; and
 - (vii) access considerations including potential impacts on public roads;
- (c) a diagram containing the following information prepared by a professional:
 - (i) the dimensioned development potential of the site, including proposed location of structures, access point, and any constraints and/or hazard areas (i.e. easements, soil conditions, topography, drainage, etc.) and a conceptual subdivision design;
 - (ii) proposed location of facilities and services (sewage disposal, domestic water, gas, electricity) to serve the subject property dimensioned to property lines and structures;
- (d) a report prepared by a certified Private Sewage Disposal System (PSDS) installer or another qualified consultant that includes:
 - (i) a drawing that shows:
 - locations of springs, dugouts or well accessing ground water
 - location of proposed system
 - locations of test pit or bore hole
 - location and size of the PSDS reserve system (if any);
 - (ii) documentation identifying soil characteristics and results of laboratory soil texture classification;
 - (iii) comments on the ability of a proposed system to be sited on the property and maintain required clearance distances;
- (e) an evaluation of surface drainage which may include adjacent properties; and
- (f) any other information deemed necessary by Council to properly evaluate the application and to understand the impacts and/or merits of the application.

70. Section 62.1 sets out mandatory requirements that the Application must include in order to be complete and considered by Vulcan County.
71. It is submitted that the Application does not include many of the items specified in Section 62.1 such as:
- (a) Subsections (b)(ii) and (iii) appear to have been omitted;
 - (b) Subsection (c), a professional has not prepared the listed items;
 - (c) a certified PSDS has not provided the requirements outlined in Subsection (d); and
 - (d) Subsection (e) appears to have been omitted.
72. It is submitted that it is the responsibility of Vulcan County to review the requirements of Section 62.1 and ensure that all requirements are included in the Application and if any item is missing, then the Application should be returned to the Applicant as incomplete.

(D) SITING REQUIREMENTS - MUST CONSIDER WHOLE PROJECT PROPOSED – SITING REQUIREMENTS NOT MET

73. Section 13.1 of the Rural Industrial – R1 description attached as Schedule 2 – R1 to the Land Use Bylaw sets out the required siting standards. A set back of 1.6 km is required from a set of listed items.
74. Prior submissions from other interested parties have measured the distance from the land boundary lines to the listed items and have argued that the distance set back does not meet the required set back of 1.6 km. We refer you to the presentation submissions provided by Mr. Trent Kostick P.Eng. submitted on April 1, 2026 as part of his verbal submission at the scheduled public hearing in this matter for a detailed review of this siting issue.
75. In addition, there is a glaring omission in the Application with respect to the requirements of Section 13.1. It is not contentious that the proposed AI data centre campus facility will require make up water drawn from Travers reservoir. With respect, we would suggest that it would appear that the proposed facility will require water intake pipes located in Travers reservoir and intake water pumps, likely located at or near the water intake pipes. We again refer to the submissions made by Mr. Trent Kostick P.Eng dated April 7, 2026 that explains this requirement.
76. It is submitted that it is required that Vulcan County consider the whole of the proposed facility and not isolate or ignore any part. The water intake system is integral to the proposed use outlined in the Application and must be

considered along with all aspects of the proposed facility. Therefore, the siting requirements outlined in Section 13.1 must include consideration of the water intake system.

77. It is submitted that once the water intake system is considered, the siting requirements outlined in Section 13.1 are clearly not satisfied.

PART V. RELIEF REQUESTED

78. For all these reasons it is the LBR Committee's position that:

- (a) the process utilized by Vulcan Country was procedurally unfair in many respects and the that Vulcan County should restart the entire process to correct this unfairness;
- (b) should Vulcan County choose to grant the Application, a judicial review application will be sought to declare the resulting bylaw invalid based on procedural unfairness;
- (c) many substantive requirements that the Application must satisfy are either deficient or missing;
- (d) Vulcan County should deny the Application based on these deficient or missing requirements; and
- (e) should Vulcan County choose to grant the Application in its present form, a judicial review application will be sought to declare the resulting bylaw invalid based on these deficient or missing substantive requirements.

79. It is the LBR Committee's strong preference that the process used to consider the Application is fair to all affected parties, that the Application address and satisfy all substantive requirements and that all parties avoid an expensive and time consuming judicial review application process.

All of which is respectfully submitted this 28th day of April, 2026.



**RONALD S. GIRVITZ
ON BEHALF OF THE
LITTLE BOW RESORT AI COMMITTEE**